



Planning & Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282

A COMMUNITY OF CHOICE

MEMO

TO: City Council and Mayor Orr

FROM: Charles Bloom, AICP, Planning & Development Director

CC: Alessandra McCoy Fakelman, Assistant City Attorney

SUBJECT: Cheyenne Frontier Days (CFD) Planned Unit Development

DATE: March 18, 2019

Please accept the attached stamped ordinance as a substitute ordinance for the Cheyenne Frontier Days (CFD) Planned Unit Development zone change for the parcel of land that is proposed for a remote parking lot during the CFD annual event. The land is located north of W. College Drive and west of Southwest Drive.

The substitute ordinance is proposed by the Assistant City Attorney to remove elements of the PUD regulations that were unclear, tangential to zoning issues and that would be difficult or timely to enforce by the City. Future PUD regulations would be similarly scrutinized for relevancy with development and/or design standards.

No substantive changes have been incorporated into this substitute ordinance from what was recommended for approval by the Planning Commission at their March 4, 2019 meeting.

The Applicant has reviewed the revised ordinance and has agreed to all changes. Thank you.

Attachment: proposed substitute stamped ordinance

ENTITLED: AN ORDINANCE PURSUANT TO SECTION 2.2.1 ZONING MAP AMENDMENTS, SECTION 5.1.2 ZONING DISTRICTS ESTABLISHED, SECTION 5.1.3 OFFICIAL ZONING MAP, AND SECTION 5.6.2. PUD – PLANNED UNIT DEVELOPMENT DISTRICT, OF THE UNIFIED DEVELOPMENT CODE, AMENDING THE ZONING CLASSIFICATION FOR A PORTION OF THE SOUTHEAST QUARTER OF SECTION 11 AND THE NORTHEAST QUARTER OF SECTION 14 IN TOWNSHIP 13 NORTH, RANGE 67 WEST FROM THE OVERLAND TRAILS PLANNED UNIT DEVELOPMENT (PUD) TO THE CFD PARK-N-RIDE PUD FOR LOT 1 OF THE CFD PARK-N-RIDE SUBDIVISION IN THE CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED WEST OF SOUTHWEST DRIVE, NORTH OF W. COLLEGE DRIVE AND ADJACENT TO I-25).

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owners of the property described herein have submitted an amendment to the 1984 Overland Trails Planned Unit Development (“PUD”) pursuant to Section 5.6.2.f of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on March 4, 2019, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed PUD Final Plan that is the subject of this ordinance, and recommended approval of this PUD Final Plan, rezoning the property described herein to CFD Park-N-Ride PUD – Planned Unit Development.

Section 3. That the Governing Body of the City of Cheyenne finds that the CFD Park-N-Ride PUD Final Plan meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That in accordance with Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, Section 5.1.3, Official Zoning Map, and Section 5.6.2 PUD – Planned Unit Development District of the UDC, the application is hereby approved and the zoning classification of the real property described as Lot 1, Block 1 of the CFD Park-N-Ride Subdivision, City of Cheyenne, Laramie County, Wyoming and illustrated in Exhibit A is hereby changed to CFD Park-N-Ride PUD Planned Unit Development.

Section 5. That, in accordance with UDC Section 5.6.2, the following standards shall govern this PUD zoning classification.

a. Purpose

The primary purpose of the Cheyenne Frontier Days (CFD) Park-N-Ride PUD is to create an area for parking during its events. The use of the property is unique in that there is a limited time frame that the site will be used annually for parking and activities that are

temporary in nature. The PUD standards would keep the site as natural as possible to provide a public amenity.

The following sections specify design and development standards that apply to development within the PUD which deviate from UDC standards. In all other instances, the development and design standards of the Cheyenne UDC shall apply.

b. Uses by Right

The uses permitted by-right in the PUD shall be limited to the following specified in UDC Table 5-1 and defined in Section 1.4.4:

Transportation Facility,
Commercial and Public Parking Facility, and
Agricultural Uses.

It will also include associated/accessory uses required to operate these facilities. Any non-CFD park-and-ride use shall submit a traffic study for the proposed use which demonstrates that the use would not result in a vehicle Level-of-Service (LOS) of less than "D" on surrounding applicable roads, or the Applicant must provide mitigation measures to assure that the proposed use results in a LOS of "D" or better for applicable roads in the area.

c. Uses Requiring Administrative Approval

The use of the site for other short-term events that are not related to CFD may be granted by the Planning and Development Director provided it meets the review criteria of UDC Section 2.2.5.d for Administrative Use approval and, furthermore, that a traffic study for the proposed use must demonstrate that the use would not result in a vehicle Level-of-Service (LOS) of less than "D" on surrounding, applicable roads, or the Applicant must provide mitigation measures to assure that the proposed use results in a LOS "D" or better for applicable roads in the area. For the purpose of this Section, a short-term event is defined as continuous activity by the proposed use of no more than three months duration during a calendar year.

d. Lot, Building Height and Setback Standards

There is no minimum or maximum square footage requirement for development on this lot. There is no lot frontage minimum requirement. Building setbacks shall be 50-feet from east property line and 10-feet from south, west and north property lines. Buildings shall be limited to two stories and property coverage shall not exceed 60% for impervious surfaces.

e. Building Design Standards

Building Design Standards are not required.

f. Landscape buffering and screening requirements

1. Along the I-25 corridor frontage, a ten-foot wide landscaped buffer shall be provided to plant drought-tolerant shrubs at a ratio of one shrub for each 10 linear feet of frontage. Shrubs may be grouped along the length of this western frontage provided the screening of parked vehicles is achieved. Shrubs shall be selected from the list provided by the Laramie County Conservation District.
2. This landscaping does not have to be irrigated per UDC 6.3.7.f.
3. The percentage of living materials requirement of UDC 6.3.7.e does not apply.

g. Parking Requirements

1. The UDC 6.2.8.c requirement for paving of parking and circulation areas of the site does not apply as this facility will only be used for a small percentage of the year.
2. Parking aisles will be constructed of all-weather surface material necessary to support emergency vehicles.
3. Parking stall and aisle widths shall meet UDC Table 6.6 standards.
4. No minimum or maximum spaces are required due to the use being a parking facility.
5. Other parking design standards of UDC Section 6.2.8 shall not apply.

Section 6. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 8 below.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

MARIAN J. ORR, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____

ORDINANCE NO. _____

ENTITLED: AN ORDINANCE PURSUANT TO SECTION 2.2.1 ZONING MAP AMENDMENTS, SECTION 5.1.2 ZONING DISTRICTS ESTABLISHED, SECTION 5.1.3 OFFICIAL ZONING MAP, AND SECTION 5.6.2. PUD – PLANNED UNIT DEVELOPMENT DISTRICT, OF THE UNIFIED DEVELOPMENT CODE, AMENDING THE ZONING CLASSIFICATION FOR A PORTION OF THE SOUTHEAST QUARTER OF SECTION 11 AND THE NORTHEAST QUARTER OF SECTION 14 IN TOWNSHIP 13 NORTH, RANGE 67 WEST FROM THE OVERLAND TRAILS PLANNED UNIT DEVELOPMENT (PUD) TO THE CFD PARK-N-RIDE PUD FOR ~~THE 27.69-ACRE LOT 1 OF THE CFD PARK-N-RIDE SUBDIVISION IN THE CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED WEST OF SOUTHWEST DRIVE, NORTH OF W. COLLEGE DRIVE AND ADJACENT TO I-25).~~

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Section 2. That on March 4, 2019, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed PUD Final Plan that is the subject of this ordinance, and recommended approval of ~~this said~~ PUD Final Plan, rezoning the property described herein to CFD Park-N-Ride PUD – Planned Unit Development.

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Section 3. That the Governing Body of the City of Cheyenne finds that the CFD Park-N-Ride PUD Final Plan ~~that is the subject of this ordinance~~ meets the criteria specified in Section 2.2.1.d of the UDC.

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Section 4. That in accordance with Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, Section 5.1.3, Official Zoning Map, and Section 5.6.2 PUD – Planned Unit Development District of the UDC, the application is hereby approved and the zoning classification of the real property described as Lot 1, Block 1 of the CFD Park-N-Ride Subdivision, City of Cheyenne, Laramie County, Wyoming and illustrated in Exhibit A is hereby changed to CFD Park-N-Ride PUD Planned Unit Development.

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Section 5. That, in accordance with UDC Section 5.6.2, the following standards shall govern this PUD zoning classification.

aSection 6. Purpose

The primary purpose of the Cheyenne Frontier Days (CFD) Park-N-Ride PUD is to create an area for parking during its events. ~~Cheyenne Frontier Days needs to provide a location in which they can accommodate visitors to the events that will be taking place at the~~

rodeo grounds. The majority of the visitors travel along the Interstate system to attend. The CFD Park N Ride allows Cheyenne Frontier Days to offer a singular location to bus attendees to the site. The use of the property is unique in nature in that there is a limited time frame that the site would be used annually on a yearly basis and that the other zones that would allow this type of use are not as desirable to the neighborhoods' current uses. The vision of CFD is to try and make the Site look as natural as it does today (before development of the parking facility) and to limit the potential uses of the property. This PUD will limit the uses by right going forward to protect the adjacent neighbors. Limiting the primary Site use to just for parking and activities that are temporary in nature. The PUD standards would keep the site as well as keeping it as natural as possible to are how the proposed deviations from regular codes provide design excellence and a public amenity.

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The following sections standards specify design and development standards sections of the Cheyenne UDC that apply to development within the PUD which as well as areas where this PUD deviates from those UDC standards. In all other instances, the development and design standards of the Cheyenne UDC shall apply.

b. Section 7. Uses by Right and Location

The uses permitted by-right in the PUD district shall be limited to the following specified in UDC Table 5-1 and defined in UDC c. Section 1.4.4: as Transportation Facility, Commercial and Public Parking Facility, and Agricultural Uses. It will also include, and associated/accessory uses required to operate these facilities. Any non-CFD park-and-ride use shall submit a traffic study for the proposed use which demonstrates that the use would not result in a vehicle Level-of-Service (LOS) of less than "D" on surrounding applicable roads, or the Applicant must provide mitigation measures to assure that the proposed use results in a LOS of "D" or better for applicable roads in the area.

c. Section 8. Uses Requiring Administrative Approval

The use of the site for other short-term events that are not related to Cheyenne Frontier Days may be granted by the Planning and Development Director provided it meets the review criteria of UDC Section 2.2.5.d for Administrative Use approval and, furthermore, that a traffic study for the proposed use must demonstrate that the use would not result in a vehicle Level-of-Service (LOS) of less than "D" on surrounding applicable roads, or the Applicant must provide mitigation measures to assure that the proposed use results in a LOS "D" or better for applicable roads in the area. For the purpose of this Section, a short-term event is defined as continuous activity by the proposed use of no more than three months duration during a calendar year.

Section 9. Uses Requiring Conditional Approval

None.

d. Section 10. Lot, Building Height and Setback Standards

There is no minimum or maximum square footage requirement for development on this lot area. There is no lot frontage minimum requirement. Building setbacks shall be 50-

feet from east property line and 10-feet from south, west and north property lines. Buildings shall be limited to two stories and property coverage shall not exceed 60% for impervious surfaces.

c. Section 11. Building Design Standards

Building Design Standards are not required. ~~The only building envisioned at this time would be for restroom facilities with an adjacent break room for volunteers.~~

f. Section 12. Landscape ~~b.~~ Buffering and ~~s~~Screening Requirements, ~~Exterior Lighting and Fencing~~

~~There currently is no water at the Site and with the limited use no internal landscaping is required.~~ 1. Along the I-25 corridor frontage a ten-foot wide landscaped buffer strip of land ~~shall will~~ be provided to ~~provide a place to plant drought-tolerant shrubs at a ratio of one shrub for each 10 linear feet of frontage, as a buffer and this does not have to be irrigated per UDC 6.3.7.f. However, for the first two years, or until the plants have been established, the Applicant shall manually water the plants.~~ Shrubs may be grouped along the length of this western frontage provided the screening of parked vehicles is achieved. Shrubs ~~shall will~~ be selected from the list from the Laramie County Conservation District.

2. This landscaping does not have to be irrigated per UDC 6.3.7.f.

3. The percentage of living materials requirement of UDC 6.3.7.e does not apply. The goal is to keep the Site as close to its current state for most of the year.

External lighting shall comply with design standards of the UDC, Section 6.4.

Fencing is allowed on the property.

g. Section 13. Parking Requirements

1. The UDC 6.2.8.c requirement for paving of parking and circulation areas of the site does not apply as ~~As~~ this facility ~~would will~~ only be used for a small percentage of the year ~~it is not required to be paved.~~

2. Parking aisles will be constructed of ~~all-weather surface material compacted crushed reek necessary~~ to support emergency vehicles. ~~Parking locations will be set up each year by the committee and volunteers will be on Site to coordinate traffic and parking.~~

3. Parking stall and aisle widths ~~shall will~~ meet UDC Table 6.6 ~~standards of the UDC.~~

4. No minimum or maximum spaces are required due to the use being a parking facility.

5. Other parking design standards of UDC Section 6.2.8 shall not apply.

Section 14. Drainage

Drainage shall comply with the UDC Section 3.2.

Section 15. Signage

Signage will meet the signage standards of UDC Section 6.5. Existing billboards on the site will remain.

Section

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16. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change

as described in Section 4 above when this ordinance takes effect in accordance with Section 18 below.

Section 7.17. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8.18. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

MARIAN J. ORR, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____